



PLANNING &
DEVELOPMENT
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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-174 / Orchard Hills – Assigned Zoning
Date: September 14, 2026

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|--------------------|
| • Introduction and Referral | September 14, 2026 |
| • Public Services Committee | September 21, 2026 |
| • Second reading | September 28, 2026 |
| • Public Services Committee | October 5, 2026 |
| • Third and final reading | October 12, 2026 |

Planning Commission Recommendation:

The Planning Commission heard this item at their September 8, 2026 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (September 9, 2026), Staff has received no new inquiries or comments from the public on this project. The project page on the website has received 202 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, ESTABLISHING THE ZONING CLASSIFICATION OF AG - AGRICULTURAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE, LOCATED WEST OF SOUTH GREELEY HIGHWAY, SOUTH OF WEST COLLEGE DRIVE, AND SOUTHWEST OF AND ADJACENT TO THE INTERSECTION OF APPLE STREET AND YORK AVENUE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Orchard Hills, LLC is the owner of the below-described real property and has petitioned the Governing Body of the City of Cheyenne to annex the property described herein and to make it a part of the City:

A PARCEL OF LAND BEING THE SW1/4 OF SECTION 18, TOWNSHIP 13 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE WEST ONE-QUARTER CORNER OF SECTION 18; THENCE S89°53'10"E A DISTANCE OF 1377.66 FEET; THENCE S89°54'17"E A DISTANCE OF 1317.22 FEET; THENCE S00°14'44"W A DISTANCE OF 2626.16 FEET TO THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 18; THENCE ALONG THE SOUTH LINE OF SAID SECTION 18 S89°59'18"W A DISTANCE OF 2687.83 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 18; THENCE ALONG THE WEST LINE OF SAID SECTION 18 N00°05'31"E A DISTANCE OF 2631.62 FEET MORE OR LESS TO THE POINT OF BEGINNING;

Said parcel of land contains 162.42 acres, more or less.

Section 2. That Section 2.2.8 of the Cheyenne Unified Development Code (UDC) provides standards and procedures for zoning districts established on land or property currently without a City zone assignment, including land being annexed to the city.

Section 3. That on September 8, 2026, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning

classifications of the real property as described in Section 1 is hereby established as AG - Agricultural.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



CITY OF
CHEYENNE
— PLANNING &
DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION
SEPTEMBER 8, 2026
STAFF REPORT

FILE: **PUDC-26-174: Orchard Hills – Assigned Zoning**

LOCATION: West of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue.

REQUEST: Assigning City zones to properties proposed for annexing.

ANNEXATION APPLICANT: Trey Rinne, AVI PC

OWNER: Orchard Hills LLC

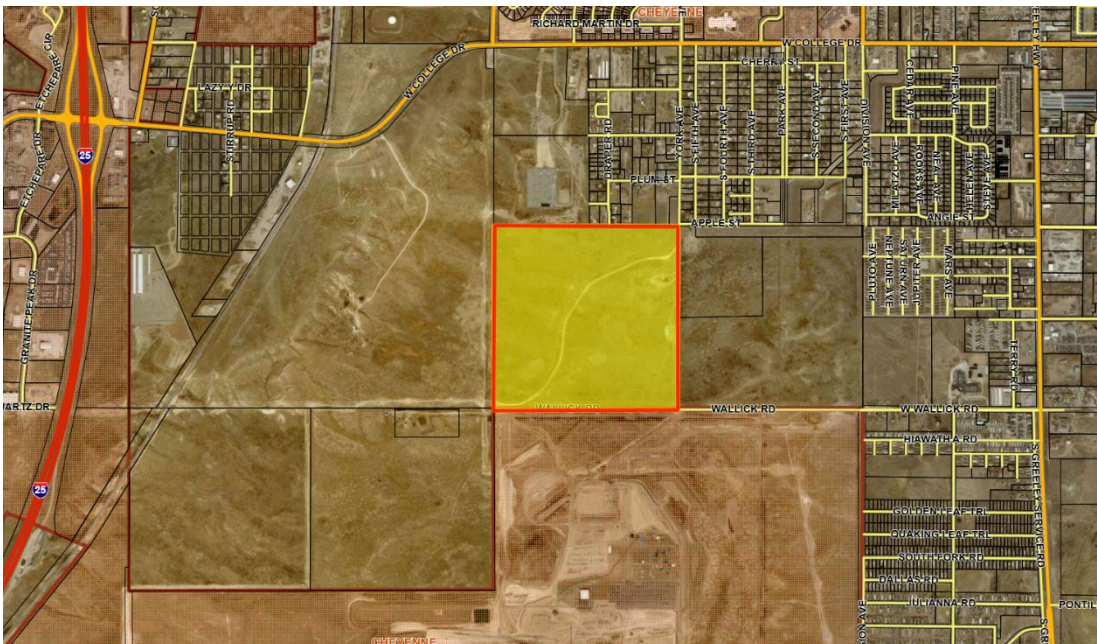
CURRENT ZONING: County LU

PROPOSED ZONING: AG

FUTURE LAND USE: Mixed-use Residential.

PURPOSE: To establish a City zoning district concurrent with annexation.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land west of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue to AG - Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

The applicant has petitioned for roughly 162.42 acres of land to be annexed into city limits. Annexation of a parcel requires a city zone to be established. Per UDC 2.2.8 a zone will be assigned based on allowed uses, current uses, or surrounding City zones. Should the applicant wish to have a different zone at the time of annexation, they will be required to submit a subsequent zoning map amendment, proposing a different zone. The applicant is requesting a different City zone upon annexation. The proposed zoning by the applicant was reviewed under PUDC-26-175.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones.

Zoning shall be assigned a City zone based on:

- Permitted uses,**
- Uses that could reasonably be anticipated for conditional use approval under the current zoning,**
- Current uses, or**
- Surrounding City zoning,**

as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property.

Through the reviewing of the annexation petition area, the assigned zoning is fairly straightforward.

The land is currently zoned LU – Land Use within the County. The City zone adjacent to this area is LI – Light Industrial. The surrounding County zones are the LU – Land Use, P – Public, and URLD – Urban Residential Low-density zone. The land is currently vacant. Surrounding uses are a data center, utility substation, single-family residential, and vacant lands. Other lands surrounding this area are vacant. The AG - Agriculture zone serves as an interim holding designation upon annexation, allowing the currently vacant property to immediately accommodate farming, ranching, or low-impact agricultural operations without committing to permanent infrastructure investments. Because an annexation petition cannot be withdrawn by the applicant and must be formally acted upon by the Governing

Body, establishing the AG classification ensures that, should the Governing Body elect to annex the property, it receives immediate, compliant zoning in the event the applicant's requested zone district is denied. Staff finds the AG zone to be the most analogous zone for this property given its current vacant state, its overall acreage, and the character of surrounding lands. Assigning AG zoning protects the site's open rural character and prevents premature development, establishing an interim holding pattern that preserves full flexibility for the property to be re-subdivided and rezoned for higher-intensity urban utilization in the future.

This assigned zoning **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

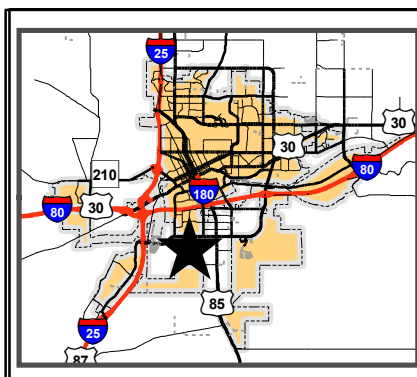
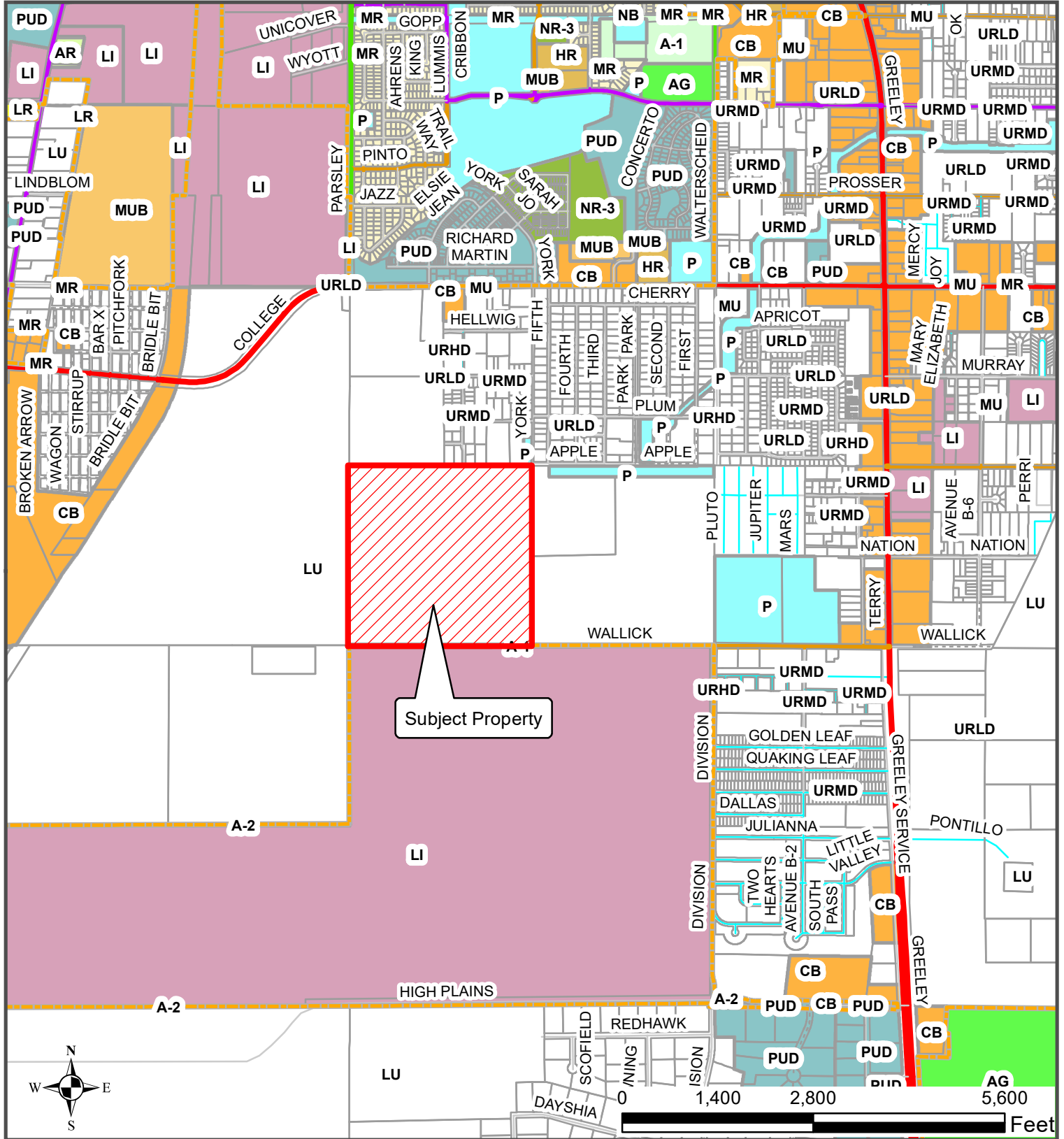
If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land west of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue to AG - Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map



Attachment 1: Zoning Map PUDC-26-174

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt